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Open Records Laws Reveal ALPRs' Sprawling Surveillance. Now States Want to Block What the Public Sees.

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Reporters, community advocates, EFF, and others have used public records laws to reveal and counteract abuse, misuse, and [fraudulent narratives](#) around how law enforcement agencies across the country use and share data collected by automated license plate readers (ALPRs). EFF is alarmed by recent laws in several states that have blocked public access to data collected by ALPRs, including, in some cases, information derived from ALPR data. We do not support pending bills in Arizona and Connecticut that would block the public oversight capabilities that ALPR information offers.

[Every state](#) has laws granting members of the public the right to obtain records from state and local governments. These are often called “freedom of information acts” (FOIAs) or “public records acts” (PRAs). They are a powerful check by the people on their government, and EFF frequently advocates for robust public access and [uses the laws to scrutinize government surveillance](#).

But lawmakers across the country, often in response to public scrutiny of police ALPRs, are introducing or enacting measures aimed at excluding broad swaths of ALPR information from disclosure under these public records laws. This could include whole categories of important information: general information about the extent of law enforcement use; details on ALPR sharing across policing agencies; data on the number of license plate scans conducted, where they happened, and how many “hits” for license plates of interest actually occur; analyses on how many false matches or other errors occur; and images taken of individuals’ own vehicles.

No thanks. Public records and public scrutiny of ALPR programs have shown that people are [harmed by these systems](#) and that retained ALPR data [violates people’s privacy](#). In this moment, lawmakers should not be completely cutting off access to public records that document the abuses perpetuated by ALPRs.

Transparency with privacy

To be sure, there are legitimate concerns about wholesale public disclosure of raw ALPR data. After all, many of the harms people experience from these systems are based on the government’s collection, retention, and use of this information. Public transparency rights should not exacerbate the privacy harms suffered by people subjected to ALPR surveillance. But many current proposals do not address legitimate privacy concerns in a measured way, much less seek to harmonize people’s privacy with the public’s right to know.

There is a better path to balancing privacy and transparency rights than outright bans or total disclosure.

Any legislative proposal concerning public access to ALPR data must start with this reality: ALPR data is deeply revealing about where a person goes, and thus about what they are doing and who they are doing it with. That’s a reason why [EFF opposes ALPRs](#). It is dangerous that the police have so much of our ALPR information. Even worse for our privacy would be for police to disclose our ALPR information to our bosses, political opponents, and ex-friends. Or to surveillance-oriented corporations that would use our ALPR information to send us targeted ads, or monetize it by selling it to the highest bidder.

On the other hand, EFF’s firsthand experience using public records from ALPR systems demonstrates the strong accountability value of public access to many kinds of ALPR data, including information like data-sharing reports and network audits. For example, in our [“Data Driven” series](#), we used ALPR data-sharing and hit ratio reports to investigate the extent of ALPR data sharing

between police departments and to analyze the number of ALPR scans that are ultimately associated with a crime-related vehicle. We have also identified [racist uses of ALPR systems](#), [ALPR surveillance of protestors](#), and [ALPR tracking of a person who sought an abortion](#). Across the country, municipalities have been [shutting down their contracts](#) for ALPR use, often citing concerns with data sharing with federal and immigration agents.

These records are not just informational—they are leverage. Communities, journalists, and local officials have used ALPR disclosures to block new deployments, refuse contract renewals, and terminate existing agreements with surveillance vendors whose practices proved too dangerous to continue. [Without this evidentiary record](#), it is far harder for cities to exercise [their procurement power](#) to say no.

It is not always easy to harmonize transparency and privacy when one person wishes to use a public records law to obtain government records that reveal people's personal information. The best approach is for public records laws to contain a privacy exemption that requires *balancing*, on a case-by-case basis, of the transparency benefits versus the privacy costs of disclosure. Many do. These provisions of public records laws already accommodate similar concerns about disclosing personal information of private individuals whose information the government may have collected, government employee's private data, and other personal information.

The balancing provisions in these laws are often flexible and allow for nuance. For example, if a government record contains a mix of information that does not reveal people's private information and some that does, agencies and courts can disclose the non-private information while withholding the truly private information. This is often accomplished with blacking out, or redacting, the private information.

Applying this privacy-and-transparency balancing to ALPR records, it will often be appropriate for the government to disclose some information and withhold other information. Everybody should generally have access to records showing *their own* movements and other information captured by ALPRs, but the privacy protections in public records laws should foreclose a single person's ability to get a copy of similar records about everyone else. And even with accessing your own data, there are complications with shared vehicles that should be considered when balancing privacy and transparency.

An example of where it may be appropriate to release unredacted data and images would be vehicles engaged in non-sensitive government business. For

example, a member of the public might use ALPR scans of garbage trucks to identify gaps in service, which would not reveal private information. On other hand, it would be inappropriate to release the scans of a government social worker visiting their clients.

Public records laws should allow a requester to obtain some ALPR information about government surveillance of everyone else, in a manner that accommodates the public transparency interest in disclosure and people's privacy interests. For example, the best public records laws would disclose the times and places that plate data was collected, but not plate data itself. This can be done, for example, by an agency or court finding that [disclosing aggregated and/or deidentified ALPR data](#) protects the privacy or other interests of individuals captured within the data. The best laws recognize that aggregation or de-identification of databases are redactions in service of individual privacy (which responding agencies must do), and are not creating new public records (which responding agencies sometimes need not do).

Likewise, in a government audit log of police searches of stored ALPR data, it will often be appropriate to disclose an officer's investigative purposes to conduct a search, and the officer's search terms – but not the search term if it is a license plate number. Many people do not want the world to know that they are under police investigation, and many public records laws generally limit the disclosure of such sensitive facts because of the reputational and privacy harm inherent in that disclosure.

Aggregate ALPR information about, for example, the amount of data collected and error rates can have important transparency value and impact government policy. Requiring the public release of that kind of data contributes to informed public discussion of how our policing agencies do their jobs. This kind of information has been used to [study](#), [critique](#), and [provide oversight of ALPR use](#).

Thus, the wholesale exemption of ALPR information from disclosure under state public records laws would stymie the public's ability to monitor how their government is using powerful and controversial surveillance technology. EFF cannot support such laws.

Blocking transparency

In Connecticut, [SB 4](#) is a pending bill that would exclude, from that state's public records law, information “gathered by” an ALPR or “created through an analysis of the information gathered by” an ALPR. This could ultimately harm

individual civilians, who would have less ability to protect themselves from law enforcement that indiscriminately collect vehicle information. Other provisions of this bill would limit government use of ALPRs, and regulate data brokers.

In Arizona, [SB 1111](#) would restrict public access to ALPR data “collected by” an ALPR. The bill would even make it a felony to access or use data from an ALPR (or disseminate it) in violation of this article, which apparently might apply to a member of the public who obtained ALPR data with a public records request. The bill’s author claims it adds “[guardrails](#)” for ALPR use.

Earlier this year, Washington state [enacted a law](#) that will exempt data “collected by” ALPRs from the state’s public records law. While “bona fide research” will still be a way for some people to obtain ALPR data, this may not include journalists and activists who analyze aggregate data to identify policy flaws. Notably, Washington [courts found](#) last year that information generated by ALPR, including images of an individual’s own vehicle, are public records; this new legislation will override that decision, blocking the ability for people to see what photos police have taken of their own vehicles. Other provisions of this new law will limit government use of ALPRs.

A year ago, Illinois’ [HB 3339](#) ended use of that state’s public records law to obtain ALPR information used and collected by the Illinois State Police (ISP), including both information “gathered by an ALPR” and information “created from the analysis of data generated by an ALPR.” This Illinois language for just the ISP is very similar to what is now being considered in Connecticut for all state and local agencies.

Sadly, the list goes on. Georgia [exempted ALPR data](#) (both “captured by or derived from” ALPRs) of any government agency from its open records law. Adding insult to injury, Georgia also made it a misdemeanor to knowingly request, use, or obtain law enforcement’s plate data for any purpose other than law enforcement. [Maryland](#) exempted “information gathered by” an ALPR from its public information act. [Oklahoma](#) exempted from its open records act the ALPR data “collected, retained or shared” by District Attorneys under that state’s Uninsured Vehicle Enforcement Program.

These laws and bills in seven states are an unwelcome national trend.

Next steps

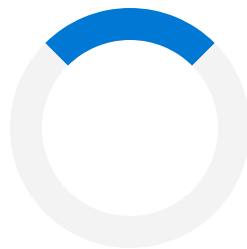
We urge legislators to reject efforts to amend state public records laws to wholly exempt ALPR information. This would diminish meaningful oversight

over these controversial technologies. Public disclosure of some ALPR information is important.

There is a better approach for states that want to harmonize privacy and transparency in the context of ALPR data:

1. Open records laws should cover, and not exclude, information collected by ALPRs, and also any public records derived from that information.
2. Open records laws should have a privacy exemption that applies to all records, including information collected or derived from ALPRs. That exemption should require a case-by-case balancing of the transparency benefits and privacy costs of disclosure. These provisions work best when agencies and courts can analyze the context of the particular records, the weight of the privacy interests and public interests at stake, and other specific facts to fashion the best balance between these competing values.
3. When a document contains both exempt and non-exempt information, open records laws should require disclosure of the latter and withholding of the former. The best public records laws allow agencies to black out, or redact, specific private information while disclosing non-private information in the same records, threading the privacy and transparency needle.
4. Finally, in the context of a law enforcement ALPR database (including both data collected by ALPRs and audit logs of police searches of stored ALPR data), the law should permit agencies to disclose aggregated and/or deidentified data, while withholding personally identifiable data. Importantly, the law should recognize that the steps an agency takes to protect individual privacy in ALPR databases should not be construed as creating a new public record.

FOIA balancing standards are one layer in a larger governance stack, and work best alongside strong guardrails on whether and how governments procure ALPR systems in the first place: public debate over vendor contracts, binding surveillance ordinances, strict data-retention limits, and clear pathways to end ALPR programs entirely where the risks prove too great.



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